

SOURCED BRIEF · JULY 2026

The Floor They Set Themselves

The Canada Disability Benefit clawback, and the standard Alberta cited to justify it

In March 2025 the Government of Alberta announced that it would deduct the federal Canada Disability Benefit from AISH payments, dollar for dollar. Alberta is the only province or territory to do so.

The Minister responsible defended the decision by reference to a number. AISH paid \$1,901 a month, he said, the federal government had set \$1,811 as a minimum for provinces to meet, and Alberta had already exceeded what was asked of it.

As of July 2, 2026, the base living allowance under the Alberta Disability Assistance Program is \$1,740 a month.

That is \$71 below the figure the province cited as the standard it was exceeding.

This document sets out the record: what was announced, when, what recipients were required to do, and what the current regulation says. It attributes no motive to anyone. Every element is drawn from government statements, published regulation, or mainstream reporting.

I. The record, in order

MAR 26, 2025	The clawback is reported. The Minister of Seniors, Community and Social Services confirms Alberta will reduce AISH by \$200, the monthly amount of the new federal benefit. The payment is to be treated as non-exempt income under AISH rules.
MAR 27, 2025	The federal government responds that provinces determine how their own programs treat the benefit, while calling on them to exempt Canada Disability Benefit payments from counting as income against provincial supports. Alberta does not.
MAY 15, 2025	The Canada Disability Benefit Regulations take legal effect federally.
SEP 5, 2025	Deadline by which every AISH recipient is required to notify their local AISH office of the status of their Canada Disability Benefit application.
OCT 2025	Reductions begin for recipients who have not applied.
APR 2026	The deduction is running on payments.

JUL 2, 2026

AR 96/2026 comes into force. AR 91/2007 is repealed. AISH recipients are transitioned to the Alberta Disability Assistance Program, base rate \$1,740.

II. Applying was not optional

The deduction was not built to wait for the federal money to arrive. Two independent organisations recorded the same requirement in 2025.

Plan Institute, which operates a national disability planning helpline, recorded that the Alberta government stated it would require AISH recipients to apply for the Canada Disability Benefit, and that all people then receiving AISH were required to report the status of their application to their local office by September 5, 2025.

Friends of Medicare recorded in September 2025 that recipients were being required to apply, and that beginning in October, anyone who did not apply would see their monthly AISH payment reduced.

The practical effect is that a recipient who has never received a dollar of the federal benefit may still have the amount deducted. Members of this campaign have produced payment statements showing exactly that.

III. The number that no longer holds

The justification offered in March 2025 rested on a comparison. It is worth setting the two figures beside one another.

AISH living allowance \$1,901 / month	ADAP living allowance \$1,740 / month
Cited federal minimum \$1,811 / month	Cited federal minimum \$1,811 / month
<i>Above the cited figure by \$90</i>	<i>Below the cited figure by \$71</i>

Recipients transitioned from AISH in July 2026 are currently held at the former rate by a transition benefit. That benefit is scheduled to end on December 31, 2027, after which the base rate applies. The deduction continues throughout.

The transition benefit itself sits in Schedule 3 of AR 96/2026, among the personal benefits, and section 13(1) provides that a transition benefit *may* be provided. Its amount is not set in the regulation. Under section 12(3) the amount of a personal benefit is determined by the Minister. The reduced rate, by contrast, is fixed in the instrument at section 8(3).

Two structures, one instrument

The reduction is written into the regulation as a fixed figure. The benefit that offsets it is discretionary in its provision and ministerial in its amount. They are not built the same way.

A caution on the \$1,811. That figure is the Minister's characterisation of a federal expectation, reported in March 2025. This campaign has not traced it to a federal source document. It is presented here as the standard the province invoked, which is the sense in which it matters.

IV. Where the authority sits after July 2

Everything described above was announced and implemented while AR 91/2007 was in force. That regulation was repealed on July 2, 2026 by section 22 of AR 96/2026.

The current regulation contains a provision permitting a director to act where a client has not applied for a federal benefit. Section 15(1)(b)(i) allows a director to refuse, suspend, vary or discontinue a benefit where, in the director's opinion, the applicant or client has failed to request a benefit under the Canada Pension Plan or under Part 1 of the Old Age Security Act, or to assign payment of that benefit to the Minister.

That provision names two federal benefits. The Canada Disability Benefit is not among them.

Schedule 1, section 1(1)(e) requires a director to include as income a Canada disability benefit that is not paid to offset the cost of applying for the disability tax credit and not exempted by section 7(2). Section 7(2) exempts the benefit only when determining eligibility for, and the amount of, a modified living allowance.

This campaign has searched AR 96/2026 for any provision requiring an applicant or client to pursue, apply for, or realise the Canada Disability Benefit, and for any provision permitting income to be attributed where it is not received. We have found none.

What that does and does not establish

It does not establish that the practice is without authority. Authority may sit in the Act, or in departmental policy, and we have not completed a review of either. What it establishes is that the requirement was announced under a regulation that has since been repealed, and that the regulation replacing it names the Canada Pension Plan and the Old Age Security Act, and does not name the Canada Disability Benefit.

V. What remains open

This campaign puts the following questions on the record rather than answering them.

One. On what provision does the department rely when deducting an amount for the Canada Disability Benefit from a recipient who does not receive it?

Two. Where a recipient has applied and been refused, on what basis does the deduction continue, and are amounts already deducted repayable under section 20(1), which provides that a director must pay an outstanding amount where a client has been underpaid?

Three. Does the province still regard \$1,811 as the standard it is meeting, and if so, how is that reconciled with a base rate of \$1,740 from January 1, 2028?

Sources

Assured Income for the Severely Handicapped General Regulation, AR 96/2026, sections 8, 12, 15, 20, 22, Schedule 1 sections 1 and 7, Schedule 3 section 13. Alberta King's Printer.

Assured Income for the Severely Handicapped General Regulation, AR 91/2007, repealed July 2, 2026.

CBC News, "Alberta to claw back federal disability benefit from AISH recipients," March 26, 2025, updated March 27, 2025.

Canada Disability Benefit Regulations, in force May 15, 2025.

Plan Institute, canadadisabilitybenefit.ca, "Will the CDB Affect Other Benefits?"

Friends of Medicare, "More Cuts for People on AISH," September 2025.

Alberta Doctors' Digest, "Pushing back against changes that make life harder for disabled Albertans," November/December 2025.

Government of Alberta, Alberta Disability Assistance Program benefit information, alberta.ca.

The Alberta Disability System Breakdown — Advocate

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